



NON-ASSOCIATE CONFIDENTIALITY AGREEMENT

This Non-Associate Confidentiality Agreement (the “Agreement”), effective as of the date of your signature to this Agreement, is made by and between Capital One Services, LLC, a Delaware limited liability company (“COSL”), together with Capital One Financial Corporation, a Delaware corporation (“COFC”), and COFC’s other subsidiaries and affiliates, including future acquired entities, and their successors and assigns (collectively, “Capital One”) and Joshua Carpentier (“you”), who is employed by ASCENDION, a supplier of services to Capital One.

Purpose of Agreement

You have agreed to perform services for Capital One (“Services”) as part of an assignment by your employer, a provider of professional services to Capital One. In the performance of the Services, you will be provided access to Capital One’s Confidential Information (as defined herein).

This Agreement is intended to protect Capital One’s legitimate interests in protecting its Confidential Information and to ensure that any Work Product (as defined herein) that you may contribute to while your perform Services is, and remains, owned exclusively by COSL.

In consideration of Capital One’s agreement to allow you to perform Services for Capital One on assignment by your employer, and Capital One’s granting you access or continued access to Capital One’s Confidential Information (as defined herein), in addition to other mutual promises between the parties, which you acknowledge to be good and sufficient consideration, it is agreed as follows:

1. **Use/Disclosure of Confidential Information.**

- a. You agree and promise that, during your assignment to perform Services for Capital One and at all times thereafter, you will not use for your own benefit or for the benefit of others (including in any future employment, work or business), or divulge to others, in any manner whatsoever, any of Capital One’s Confidential Information, except as required for performance of the Services for Capital One or as expressly authorized by Capital One. This restriction on use and disclosure of Confidential Information is not limited to any geographic, functional, or, except as provided below, temporal limitations, subject to applicable law. To the extent that, after your assignment at Capital One concludes for any reason, you reside in a jurisdiction that requires a temporal limitation on the obligation not to use or disclose confidential information that does not fully qualify for protection as a Trade Secret, the obligation not to use or disclose such information shall remain in effect for three years after the end of your assignment to provide Services for Capital One. Your obligation not to use or disclose information that does qualify for protection as a Trade Secret shall remain in effect until such information becomes generally known through no fault of yourself or others who are under duties of confidentiality to Capital One. You acknowledge and agree that Capital One has taken reasonable measures to preserve the secrecy of its Confidential Information and that one of your responsibilities is the duty to safeguard said Confidential Information against improper use or disclosure. Nothing in this Agreement is intended, nor shall be construed, to interfere with or prohibit you from discussing wages, hours and other terms and conditions of employment for purposes of engaging in protected concerted activity, consistent with labor laws. Nothing in this Agreement prevents you from discussing or disclosing information about unlawful acts in the workplace, such as harassment or discrimination or any other conduct that you have reason to believe is unlawful.
- b. “Confidential Information” means information, knowledge, data, specialized training, or other information that derives actual or potential value from the fact that it is not generally known to members of the general public, which concerns the business or affairs of Capital One or Capital One’s customers. Confidential Information includes, but is not limited to, information relating to any



business engaged in or planned or under active consideration to be entered into by Capital One, such as information regarding: business plans and strategies; products, including data products; services; technology strategies, practices and systems; software and other computer code, including libraries, compilations, scripts, and routines; algorithms; engineering; user experience and design learnings, including customer prototypes, models and research; machine learning, including model and data strategies and custom data features; Work Product; Trade Secrets; test data and results; discoveries; customer lists; customer transaction data; information regarding customer needs and preferences and Capital One's strategies for satisfying them; supplier and vendor capabilities and agreements; information that Capital One receives from others that it is obligated to treat as confidential, which may be made known to you by Capital One or a third party during your assignment with Capital One; databases; frameworks; models; credit policies and practices; collection, repossession and recovery policies and practices; marketing, selling and operating policies, practices, and strategies, including without limitation, policies, practices, and strategies concerning the identity, solicitation, acquisition, management, resale or cancellation of unsecured or secured lending accounts, automobile loan or lease accounts and other accounts relating to consumer, small business and commercial products and services

- c. Nothing in this Agreement prohibits or restricts you (or your attorney) from filing a charge, complaint, or claim with; providing information or testimony to; communicating with; or participating in any inquiry, investigation, or proceeding by any of the Government Agencies (defined below) regarding any allegations of any possible violation of any federal, state, or local law, rule, or regulation. This Agreement also does not prohibit or restrict you from making any other disclosures protected under any whistleblower provisions. You are hereby provided notice under the Defend Trade Secrets Act ("DTSA") that you will not be held criminally or civilly liable under any Federal or State trade secret law for the disclosure of a Trade Secret that (i) is made in confidence, directly or indirectly, to Government Agencies, or to an attorney, and solely for the purpose of reporting or investigating a suspected violation of law; or, (ii) is made in a complaint or other document filed in a lawsuit or other proceeding, if such filing is made under seal. "Government Agencies" means any federal, state or local government agency or authority, including, but not limited to, the Securities and Exchange Commission, the Department of Labor, the Department of Justice, the Congress, any agency Inspector General, the Equal Employment Opportunity Commission, the National Labor Relations Board, the Office of Federal Contract Compliance Programs, the Consumer Financial Protection Bureau, the Federal Reserve Bank of Richmond, the Federal Reserve System, the Federal Deposit Insurance Corporation, or the Financial Industry Regulatory Agency or any other self-regulatory organization. Government Agencies have the authority to carry out their statutory duties by investigating charges, complaints, or claims, issuing a determination, filing a lawsuit, or taking any other action authorized by applicable law. You retain the right to participate in any such action and to communicate with any of the Government Agencies. Such communications can be initiated by you or in response to contact by any Government Agency and such communications are not limited by any term or provision of this Agreement. Before you disclose any Confidential Information to any of the Government Agencies, you agree to inform them that Capital One considers the information to be confidential and proprietary business information and, as such, subject to protection by any such Government Agencies to the fullest extent provided for under applicable laws, regulations and rules. You do not need the prior authorization of Capital One to disclose Confidential Information to any of the Government Agencies and are not required to disclose to Capital One that you have made such a disclosure to any of the Government Agencies.
- d. Other than with respect to interactions with Government Agencies, you agree that, prior to responding to any valid subpoena, court order, or other legal process that requires or allows you to disclose Confidential Information, you will first notify Capital One in writing of the proposed disclosure and provide Capital One a reasonable period of time to object to or seek a protective order with respect to its Confidential Information. Further, under the DTSA, if you file a retaliation lawsuit for reporting a



suspected violation of law, you may disclose a Trade Secret to your attorney and use Trade Secret information in the court proceeding if you file any document containing the Trade Secret information under seal, and do not disclose the Trade Secret, except pursuant to court order. The effect of this Agreement on any of your interactions with Government Agencies, including disclosure of Confidential Information to Government Agencies, is addressed in Paragraph 1(c) of this Agreement.

- e. Upon the termination of your assignment at Capital One (for any reason) or at any other time upon Capital One's request, you agree to immediately deliver to Capital One the originals and all copies of all memoranda, notes, documents, business plans, customer lists, files, data sets, software and other computer code, including libraries, compilations, scripts, and routines, and any other records or property of any kind in any media received, possessed, used, reviewed, made or compiled by you during the course of providing Services for Capital One which contain or constitute Confidential Information. You agree to immediately inform Capital One of the existence of all such information located on the memory of any computer or other electronic data storage devices or media you may use other than Capital One computers or storage devices and, if so requested by Capital One, to permanently delete such information. You further agree that, during your assignment to provide Services for Capital One and at all times thereafter, you will not post or otherwise display any Confidential Information on the Internet or similar medium. Upon request from Capital One, within ten (10) days of such request you will provide Capital One with written certification that you have complied with this Paragraph.

2. **Ownership of Work Product.**

- a. "Work Product" means all inventions (including utility and design inventions), discoveries, designs, developments, concepts, improvements, techniques, procedures, algorithms, Trade Secrets, works of authorship, logos, and source-identifying names (whether or not patentable or registrable under copyright, trademark or service mark, or similar laws) that you (alone or with others) create, conceive, reduce to practice, develop, deliver, or otherwise produce (in whole or in part), at any time during the period of your assignment with Capital One (whether or not as part of your job responsibilities), or that use any equipment, supplies, facilities, or Confidential Information of Capital One.
- b. "Trade Secret" means information, including but not limited to, a formula, pattern, model, data set, compilation, program, device, method, technique, or process, that: (a) derives independent economic value, actual or potential, from not being generally known to, and not being readily ascertainable by proper means by other persons who can obtain economic value from its disclosure or use, and (b) is the subject of efforts that are reasonable under the circumstances to maintain its secrecy.
- c. "Intellectual Property Rights" means all (a) issued patents and patent applications, whether utility or design, and other rights of inventorship; (b) copyrights, copyright applications, copyright registrations and other rights of authorship; (c) trademarks and/or service marks, including without limitation, registrations, applications and intent to use applications for registration, common law rights, and other rights relating to designation of source of origin; (d) rights relating to know-how, Confidential Information and Trade Secrets; (e) rights analogous to those set forth herein and any other proprietary rights relating to intangible property; and (f) any and all divisions, continuations, continuations-in-part, renewals, reissues, reexaminations, and extensions of the foregoing (as applicable); in each case, now existing or hereafter filed, issued or acquired anywhere in the world.
- d. **Assignment of Work Product.** You agree that you will promptly make full disclosure to Capital One of all Work Product, and that you agree to grant and hereby grant, transfer and exclusively assign to COSL (or its designee), without further consideration, all of your rights, title and interest in and to such Work Product, except as provided in Paragraph 2(e) below. You further agree that any and all works of authorship created by you (alone or with others) within the scope and during the period of your



assignment with Capital One, and which are protectable by copyright, are “works made for hire,” as that term is defined in the United States Copyright Act, and under any similar laws of other jurisdictions outside of the United States.

- e. **Exception to Assignment of Work Product.** Any provision in this Agreement requiring you to assign rights in Work Product to COSL does not and will not apply to any Work Product for which no equipment, supplies, facilities, or trade secret information of Capital One was used and that was developed entirely on your own time, unless (i) the invention relates at the time of conception or reduction to practice of the invention (a) directly to the business of Capital One, or (b) to Capital One’s actual or demonstrably anticipated research or development, or (ii) the invention results from any work performed by you for Capital One. This “Exception to Assignment of Work Product” shall be interpreted in a manner that complies with applicable state law.
 - f. **Assistance.** You acknowledge and recognize COSL’s exclusive right and title to, and ownership of, the assigned Work Product. You agree to perform, upon the request of Capital One, during or after your assignment, such acts as Capital One in its sole discretion determines may be reasonably necessary or desirable to transfer, perfect and defend COSL’s ownership of the assigned Work Product and any Intellectual Property Rights related thereto and to enforce or defend any such rights, and you hereby appoint COSL your attorney-in-fact to complete all documents necessary to secure or perfect such Intellectual Property Rights. You agree to assist COSL, at its expense, in the prosecution, defense, and enforcement of its Intellectual Property Rights at any time, and you agree not to challenge the validity of COSL’s ownership of Intellectual Property Rights related to such Work Product. You agree not to use or disclose any such Work Product to any third party without written authorization by Capital One either during or after your assignment and agree to return to Capital One any and all such Work Product upon termination of employment or upon prior request of Capital One.
 - g. **Prior Inventions.** You agree to provide on Attachment 1, the last page of this Agreement, a list describing all inventions, discoveries, designs, developments, concepts, improvements, techniques, procedures, algorithms, Trade Secrets, works of authorship, logos, and source-identifying names which were made by you prior to your assignment with Capital One (collectively, “Prior Inventions” or singularly, “a Prior Invention”), whether or not patentable or registrable under copyright, trademark or service mark, or similar laws, that belong to you, which relate to Capital One’s business, products or research and development, and which are not assigned to Capital One hereunder; or, if you do not provide any such list on Attachment 1 to this Agreement, you represent that there are no such Prior Inventions. If in the course of your assignment with Capital One, you use or incorporate any such Prior Invention in any released or unreleased Capital One product, service, program, process, development, or work in progress, or if you permit by act or inaction Capital One to use or incorporate such Prior Invention, Capital One is hereby granted and shall have an irrevocable, perpetual, royalty-free, non-exclusive, transferable, worldwide license to exercise any and all rights with respect to such Prior Invention, including without limitation the right to protect, make, have made, use and sell that Prior Invention or products or services incorporating such, without restriction and the right to sublicense those rights to others.
3. **No Misuse of Intellectual Property of Others.** Capital One respects the valid intellectual property rights of third parties. You acknowledge and agree that you have not and will not use or disclose at Capital One any confidential information or Intellectual Property Rights of any third party without the prior written permission of such third party.
 4. **Reasonableness.** You acknowledge that the restrictions in this Agreement are necessary to prevent the use and disclosure of Confidential Information and to otherwise protect the legitimate business interests of Capital One and that all of the restrictions in this Agreement are reasonable. You agree that the existence of any claim or cause of action by you against Capital One, whether predicated on this Agreement or



otherwise, shall not constitute a defense to the enforcement by Capital One of the covenants and restrictions set forth in this Agreement.

5. **Irreparable Harm; Injunctive Relief.** You acknowledge and agree that a violation of any provision of this Agreement will cause immediate, substantial and irreparable harm to Capital One which cannot be adequately redressed by monetary damages alone. In the event of your violation or threatened violation of any provision of this Agreement, you agree that Capital One, without limiting any other legal or equitable remedies available to it, shall be entitled to equitable relief, including, without limitation, temporary, preliminary and permanent injunctive relief, return of property, and specific performance, from any court of competent jurisdiction
6. **No Employment Relationship.** You and Capital One acknowledge and agree that you are performing services for Capital One on an assignment by your employer, a vendor providing professional services to Capital One, and that you are not an employee of Capital One. Nothing in this Agreement should be construed or interpreted as establishing an employer/employee relationship between you and Capital One.
7. **Choice of Law; Forum.** This Agreement shall be governed by and construed in accordance with the laws of Delaware, the state of incorporation of COFC, without regard to principles of conflicts of law. Capital One and you hereby consent and submit to the personal jurisdiction and venue of any state or federal court located within the State of Delaware as a non-exclusive forum for resolution of claims, causes of action or disputes arising out of or related to this Agreement. With respect to any action seeking preliminary injunctive relief on account of the violation or threatened violation of this Agreement by you, Capital One shall be entitled to seek such relief from any court of competent jurisdiction, wherever located. Notwithstanding the foregoing, this choice of law and forum provision shall not apply if you primarily reside and work in California when executing this Agreement, and, in such case, this provision is not intended to deprive you of the substantive protection of California law or a California venue with respect to a controversy arising in California under this Agreement.
8. **Court's Right to Modify Restriction; Severability.** The parties agree that if at the time enforcement is sought, a court of competent jurisdiction adjudges any provision or portion of any provision of this Agreement to be void, invalid, or unenforceable, or is found to be against public policy for any reason, such court may modify or reform such provision or portion of such provision so that it is enforceable to the fullest extent permitted by applicable law, or if such modification or reformation is not possible, shall sever the void, invalid or unenforceable provision or portion of such provision, and enforce the remaining provisions and portions of such provisions of the Agreement, which shall remain in full force and effect.
9. **No Waiver.** Any failure of Capital One to demand rigid adherence to one or more of this Agreement's provisions, on one or more occasions, shall not be construed as a waiver nor deprive Capital One of the right to insist upon strict compliance with the terms of this Agreement. To be effective, any waiver of this Agreement, in whole or in part, must be in writing and signed by the party granting the waiver.



By providing your signature to this Agreement below, you understand and agree that this Agreement (a) is binding on you and your personal representatives, (b) is made for the benefit of Capital One, its successors and/or assigns, without further consent (c) is a condition of your assignment to perform Services for Capital One.

DocuSigned by:

Joshua Carpentier
A1964AE90B97463

Signature of Individual on Assignment to Capital One

Joshua Carpentier

Print Name of Individual on Assignment to Capital One

June 17, 2024

Date



Attachment 1 - List of Your Prior Inventions, per Paragraph 2(g)

Please provide, in the space provided below, a list of your Prior Inventions, if any, as that term is defined in paragraph 2(g) of this Agreement:

Certificate Of Completion

Envelope Id: 8F8854BFE8074ABA8694BD6B9AD60C74		Status: Completed
Subject: Please DocuSign this Confidentiality Agreement for Capital One		
Source Envelope:		
Document Pages: 7	Signatures: 1	Envelope Originator:
Certificate Pages: 4	Initials: 4	Flex Force
AutoNav: Enabled		1680 Capital One Dr
Envelope Stamping: Enabled		Mc Lean, VA 22102
Time Zone: (UTC-05:00) Eastern Time (US & Canada)		flexforce@capitalone.com
		IP Address: 13.110.246.8

Record Tracking

Status: Original	Holder: Flex Force	Location: DocuSign
6/17/2024 11:20:59 AM	flexforce@capitalone.com	

Signer Events	Signature	Timestamp
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Joshua Carpentier	DocuSigned by:  A1964AF90B97463...	Sent: 6/17/2024 11:21:01 AM
joshuaxcarpentier@gmail.com		Viewed: 6/17/2024 11:22:46 AM
Security Level: Email, Account Authentication (None)		Signed: 6/17/2024 11:23:36 AM
	Signature Adoption: Pre-selected Style Using IP Address: 71.247.209.250	

Electronic Record and Signature Disclosure:
Accepted: 6/17/2024 11:22:46 AM
ID: ad034115-7c74-4a6d-a8b2-eb6f1ed70aa6

In Person Signer Events	Signature	Timestamp
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Editor Delivery Events	Status	Timestamp
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Agent Delivery Events	Status	Timestamp
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Intermediary Delivery Events	Status	Timestamp
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Certified Delivery Events	Status	Timestamp
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Carbon Copy Events	Status	Timestamp
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Witness Events	Signature	Timestamp
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Notary Events	Signature	Timestamp
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Envelope Summary Events	Status	Timestamps
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Envelope Sent	Hashed/Encrypted	6/17/2024 11:21:01 AM
Certified Delivered	Security Checked	6/17/2024 11:22:46 AM
Signing Complete	Security Checked	6/17/2024 11:23:36 AM
Completed	Security Checked	6/17/2024 11:23:36 AM

Payment Events	Status	Timestamps
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Electronic Record and Signature Disclosure

Electronic Record Signature Disclosure

Please read this Electronic Record and Signature Disclosure (“ERSD”) carefully. It contains important information about receiving and signing Communications electronically.

The documents in this Envelope are being provided by (a) the Capital One entity listed on your account agreement if you are a Customer or (b) by the Capital One entity listed in the documents in this Envelope (collectively referred to herein as “we,” “us,” “Company”, or “Capital One”) if you are not a Customer. Certain laws may require us to provide specific information (including notices and disclosures) to you in writing (“Required Information”), which means you have the right to receive such Required Information on paper if you wish.

By consenting below, you may instead choose to receive all such Required Information electronically. We also need your general consent to use electronic signatures, and to send you other types of Communications in connection with our relationship with you electronically (Required Information and other Communications are collectively referred to herein as “Communications”).

Scope

“Communications” means information or documents included in this Envelope such as disclosures, notices, authorizations, acknowledgements, agreements, undertakings, fee schedules, periodic statements, or other information as part of a Capital One account enrollment, setup, or servicing. Communications may also include certain tax statements or forms, which may include, but are not limited to, Forms 1098, 1098-E, 1098-MA, 1098-T, 1099-A, B, C, CAP, DIV, G, H, INT, K, LTC, MISC, OID, PATR, Q, R, S, SA, 3921, 3922, 5498, 5498-ESA, and 5498-SA and Schedule K-1 (“Tax Documents”). In addition to all the terms contained in this ERSD, including with respect to your right to paper copies, your right to withdraw your consent and the hardware and software necessary to access and retain Tax Documents, each of the following applies to the electronic delivery of Tax Documents:

- You are not required to receive Tax Documents electronically. If you do not want to receive them electronically, do not agree to this ERSD by clicking the Decline to Sign button.
- If you consent to receive the Tax Documents contained within this Envelope electronically, your consent will apply only for Tax Documents required to be delivered after the date of the consent (which are typically Tax Documents that are required to be delivered by January 31st or February 15th, as applicable, of the relevant year until October 15th of such year).
- Your ability to electronically access Tax Documents provided within this Envelope is from the date of the consent, and they will remain available for 24 months from the time sent via the Envelope. The electronic delivery of Tax Documents may be terminated at any time by us.
- If after we furnish you a Tax Document and you would like a paper copy, please see “Obtaining Copies of Electronic Communications” for instructions on how to do so.

“Customer” means a person who obtains or has obtained a financial product or service from us.

“Envelope” means the electronic container for the Communication(s) related solely to this transaction. Each Envelope may contain one or more Communications.

This ERSD applies only to Communications included within this Envelope. Your consent to receive Communications within this Envelope does not affect the legal effectiveness, validity, or enforceability of any other consent to use electronic communications, records, and signatures that you may have given to Capital One. Further, your consent to receive Communications within this Envelope does not supersede or amend any other agreement you may have entered into with us regarding the delivery of electronic communications or notices related to that agreement.

Delivery of Your Communications

We will provide you Communications electronically through the DocuSign system. We will notify you by email when any Communications are available through DocuSign and the email will contain a link to the Communications. If your email address or other contact information changes, you must notify Capital One of such changes immediately by updating the profile on your Capital One account or if you are not a Customer, by following the process you used to originally provide us with your email address.

Except to the extent prohibited by applicable law, email and Communications sent to you electronically shall be deemed delivered when we send them to your email address listed on your Capital One account if you are a Customer or the email address you provided us if you are not a Customer. If you fail to update or change an incorrect email address, you understand and agree that any electronic Communications shall nevertheless be deemed to have been provided to you if they were made available to you via a link sent to the email address that you provided us.

The minimum system requirements for using the DocuSign system may change over time. At a minimum, you will need the following:

- An internet browser capable of accessing DocuSign;
- An internet connection; and
- A device (*e.g.*, a computer, tablet, mobile phone, etc.) and an operating system capable of supporting all of the above. You will also need a printer if you wish to print out and retain records on paper, and electronic storage if you wish to retain records in electronic form.

The current system requirements are available on the DocuSign website.

Termination and Changes

We reserve the right to discontinue providing you with electronic Communications through the DocuSign system, or to terminate or change this ERSD. We will provide you with notice of any such termination or change as required by law.

Obtaining Copies of Electronic Communications

You will have the ability to download and print Communications we send to you through the DocuSign system during and immediately after the session and, if you elect to create a DocuSign account, you may access the Communications for 24 months after such Communications are first sent to you. At any time, you may request from us a paper copy of any Communication provided or made available electronically to you by us, including this ERSD. You may request delivery of such paper copies from us by contacting the sender for the Envelope or contacting Capital One using the contact information for your account. There are currently no fees for this service.

How To Withdraw Your Consent

You may decline to consent to this ERSD below. If you decline to receive Communications electronically, your transaction may be delayed as we will need to send them to you on paper.

In addition, once you have consented, you may withdraw your consent during the signing session by utilizing the DocuSign drop down menu. If you choose to decline to proceed during the signing session, we will send all Communications to you via paper, which may delay your transaction. Your choice to withdraw will not impact past or future Envelopes or any other electronic consents you have provided as part of our relationship with you.

Acknowledging Your Access and Consenting to Receive and Sign Documents Electronically

TAfter reviewing the above terms and conditions of this ERSD, if you consent to receive Communications in electronic format as described above, select the check-box next to “I agree to use electronic records and signatures” before clicking “CONTINUE” within the DocuSign system. By selecting this check-box, you confirm that:

- You can access and read this ERSD;
- You can print out this ERSD, can save it electronically or send it to a location (*i.e.*, your e-mail address) where you can print it out for your future reference and access; and
- You have the necessary software and hardware to proceed.